

		Plaintiff's claim for declaratory relief requests the court determine the terms of the contract; however such relief is accompanied by a number of other claims based on alleged breach of those terms. Where there is an accrued cause of action for an actual breach of contract or other wrongful act, declaratory relief may be denied. (<i>Osseous Technologies of America, Inc. v. DiscoveryOrtho Partners LLC</i> (2010) 191 Cal.App.4th 357.) Plaintiff has already brought a breach of contract claim, and there are no allegations that the rights and obligations of the parties need to be determined to avoid any future breaches. As such, the demurrer to the fifth cause of action is SUSTAINED with leave to amend. Cause of Action 6: Injunctive Relief Defendant argues that the request for injunctive relief is a remedy rather than a cause of action. Plaintiff asserts he will soon file a request for preliminary injunction. However, the cause of action itself appears to be based on Business and Professions Code § 17200 et seq. It is unclear whether this cause of action is actually a claim for injunctive relief or whether it is a claim for Unfair Competition. As such, the demurrer to the sixth cause of action is SUSTAINED with leave to amend. <u>II. Motion to Strike</u> Given the ruling on the above demurrer, the Motion to Strike is MOOT. Moving party is ordered to provide notice of these rulings.
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